MUTUAL NON-DISCLOSURE AGREEMENT

This Mutual Non-Disclosure Agreement ("**Agreement**") is entered into as of _____ ("**Effective Date**") by and between Modulix Solutions, LLC, a company organized and existing under the laws of West Virginia, with its principal place of business at 419 Rocky Lane, Keyser WV 26726 ("Company"), and _____, an individual residing at _____ ("Counterparty").

Each may be referred to as a "Party" and collectively as the "Parties."

1. **Definitions.**The following terms, as used in this Agreement, have the following meanings:

   "**Purpose**" means a potential business opportunity, collaboration, investment, employment, contracting relationship, or other transaction that may require the disclosure of Confidential Information (as defined below).

   "**Confidential Information**" means any non-public information disclosed by one Party ("**Disclosing Party**") to the other Party ("**Receiving Party**"), whether orally, visually, electronically, in writing, or by any other means, including but not limited to: trade secret information; matters of a technical nature such as source code, object code, software architecture, APIs, algorithms, technical documentation, processes, devices, techniques, data and formulas, research subjects and results; marketing methods; plans and strategies; information about operations, products, services, revenues, expenses, profits, sales, key personnel, customers, suppliers, and pricing policies; inventions, know-how, and any information concerning proprietary technical information, marketing or other business affairs and methods of the Disclosing Party which is not readily available to the public. "Confidential Information" also includes information of others that (1) is disclosed under this Agreement, (2) the Disclosing Party is obligated to protect from disclosure or restricted from using or both, and (3) that would constitute "Confidential Information" if the information belonged to the Disclosing Party.

2. **Use of Confidential Information.**
   The Recipient shall use Confidential Information only for the Purpose. Unless otherwise agreed in writing, neither party shall disclose to a third party the fact that discussions or negotiations are taking place concerning the Purpose or any of the terms or other facts relating to the Purpose, including the status of negotiations between the parties

3. **Confidentiality; Standard of Care; Limited Access.**
   The Recipient shall protect the Confidential Information from unauthorized use and disclosure using the same degree of care that it uses with respect to its own information of like importance, but no less than a reasonable degree of care. The Recipient shall retain the Confidential Information in confidence and shall not disclose Confidential Information to any third party without the Disclosing Party's prior written consent. However, the Recipient may disclose the Confidential Information to employees, contractors, consultants, and authorized representatives of the Recipient who (1) require access to the information for the Purpose, (2) are informed by the Recipient of the Recipient's obligations under this Agreement, and (3) are bound by contract or fiduciary duty to obligations of confidentiality and use restrictions with substantially similar function, purpose, scope, and effect to those of this

Agreement and that are at least as protective of the Confidential Information as this Agreement.

4. **Exclusions**
   a. This Agreement imposes no obligations upon the Recipient with respect to Confidential Information that: (1) was known to the Recipient before disclosure by the Disclosing Party as evidenced by contemporaneous records; (2) has become publicly available through no fault of the Recipient; (3) is disclosed to the Recipient by a third party that has the right to make the disclosure to the Recipient and that does not have any obligation of confidentiality with respect to the Confidential Information; (4) is disclosed by the Recipient with the Disclosing Party's prior written consent; or (5) is independently developed by the Recipient without use of or reference to the Disclosing Party's Confidential Information, as shown by the Recipient's written records made at the time.

   b. If the Recipient is required by any governmental agency, court, or other judicial or regulatory body to provide any Confidential Information received under this Agreement, then the Recipient will not be deemed to be in violation of this Agreement for the disclosure if the Recipient promptly gives written notice to the Disclosing Party of the requirement to provide the Confidential Information and cooperates with the Disclosing Party so that the Disclosing Party may contest the requirement to provide the Confidential Information. The Recipient may disclose only that portion of the Confidential Information that it is legally required to furnish.

5. **No Grant or License.**
   The disclosure of Confidential Information under this Agreement will not constitute the grant of a license to or an interest in the Confidential Information or any other intellectual property of the Disclosing Party.

6. **"As Is" Disclosure.**
   All information that the Disclosing Party provides under this Agreement is provided "as is." The Disclosing Party makes no representations as to the information's accuracy, completeness, or noninfringement.

7. **Relationship of the Parties.**
   This Agreement does not create an agency, joint venture, partnership, employment, or other formal business relationship or association between the parties, or obligate either party to enter into any subsequent agreement or business arrangement or to purchase or provide any goods or services.

8. **Term and Obligations of Confidentiality Period.**
   This Agreement will continue for a period of three years from the Effective Date unless: (1) terminated earlier by either party upon written notice to the other; (2) extended by the mutual written agreement of the parties; or (3) superseded by a subsequent written agreement that explicitly sets forth the obligations of the parties with respect to Confidential Information. With respect to business information, the Recipient's obligations of confidentiality and non-use under this Agreement will expire three years from the termination of this Agreement. With respect to all information that constitutes a trade secret, the Recipient's obligations of confidentiality and non-use under this Agreement will survive the termination of this Agreement for as long as such information remains a trade secret under applicable law.

9. **Return or Destruction**

Upon the Disclosing Party's request or termination of this Agreement, the Recipient shall return to the Disclosing Party, delete, or destroy all written and electronic documentation and data containing Confidential Information and any other written, recorded, or machine-readable material containing or reflecting any Confidential Information. Upon the Disclosing Party's request, the Recipient shall provide written certification of the destruction or deletion of Confidential Information under this section.

10. **Remedies**
    The Parties acknowledge that any breach may cause irreparable harm for which monetary damages are inadequate. The Disclosing Party shall be entitled to seek immediate injunctive relief in addition to any other remedies available.

11. **Severability.**
    If a court of competent jurisdiction declares any provision of this Agreement invalid or unenforceable, then the parties request that the court judicially modify that provision consistent with the intent of this Agreement so that it will be enforceable to the fullest extent possible.

12. **Governing Law and Venue**
    This Agreement shall be governed by the laws of West Virginia, without regard to conflict of law principles. Any disputes shall be resolved exclusively in the courts located in West Virginia.

13. **Miscellaneous**
    This Agreement constitutes the entire agreement regarding confidentiality and supersedes all prior discussions or agreements. It may only be amended in writing signed by both Parties. If any provision is held invalid, the remainder shall remain in full force.

[Signature page follows.]

IN WITNESS WHEREOF, the Parties have executed this Agreement as of the Effective Date.

Modulix Solutions, LLC

By: _____
Name: _____
Title: _____
Date: _____

_____

By: _____
Name: _____
Date:_____